

FREE SPEECH IN INDIA: MYTH OR MYSTERY?

To go silently into the night is akin to not have existed at all. We speak, therefore we are. And just how tolerant are we of all our unique voices? Time to introspect is now.

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For a country boasting of strong secular fundamentals, democratic values, aiming to be a superpower of the 21st century, our nation's (and its lawmakers') commitment to preserving and protecting freedom of speech and expression is flimsy at best. Nothing is in black and white, everything is a fifty shades of grey. Trying to navigate and understand the landscape isn't unlike stepping on an old landmine in the Vietnamese countryside, where all you wanted to do was take a stroll down the hill.

We know our Constitution unequivocally states that "all [Indian] citizens shall have the right to freedom of speech and expression," as highlighted under Article 19(1)(a). However, Article 19(2) is quick to emphasize that this fundamental right isn't absolute; it comes with several strings attached, empowering the Parliament to enact laws to rein in free speech for matters concerning national security, maintaining public order, decency and morality, among other things. One can argue these statutory limitations to be too broad and vague. Due to the process of constitutional amendments, sections 153A

and 153B of the Indian Penal Code (since 1972), which deals with offences against public tranquility, tighten the noose around the privileges of free speech and expression almost to the degree of making it non-existent.

You can only imagine how all of this can pose a dangerous precedent. The Internet changes the rules of engagement drastically and in the rush to control it free speech is often left haemorrhaging by the roadside. We recount the following alarming interpretations of free speech restrictions in the country which took place in the last five years, leaving you, our dear reader, to ultimately decide whether any of these constitute violations of our fundamental rights.

Ban! Ban it all!! In December 2014, the government instructed internet-ser-

vice providers (including mobile operators) to block a list of 32 websites. This caused huge uproar for the netizens of the country, because websites like Github, Dailymotion, PasteBin, Vimeo, Archive.org and Imgur were part of the list and were blocked outright. They were completely inaccessible. Why? India's Anti Terrorism Squad had sniffed out anti-India content on these websites tracing it back to the terrorist group ISIS (also known as IS or ISIL). A couple of days later, the ban was reversed. This exposes either the brazen laziness or rueful lack of understanding between a website and a web page of our authorities. Couldn't they have just blocked the questionable pages, and left the rest of the website running? Jeez Luigi!

Just a Facebook comment: In a troublesome case of impeding free speech online, two women from Palghar (situated approximately 100 km from Mumbai) were detained for posting a Facebook comment questioning the need to shut down the coastal city after the death of a popular political leader, Bal Thackeray of Shiv Sena party, in November 2012. This obviously didn't sit down well with party



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